

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

GWENDOLYN SHETTY,

Petitioner

VS.

SACHINDEV SHETTY,

Respondent

) Case Number: FDI-24-799942

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE:CHILD SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Gwendolyn Shetty and Respondent Sachindev Shetty. They share one minor child: Montara Brooke Shetty (DOB: 01/13/18).
- 2) On January 23, 2026, Petitioner filed a Request for Order (RFO) seeking guideline child support retroactive to July 5, 2024, and \$35,600 in attorney fees and costs.
- 3) On January 23, 2026, Petitioner filed a Memorandum of Points and Authorities.
- 4) On January 23, 2026, Petitioner filed Declaration of Counsel in Support of Petitioner's Request for Attorney's Fees Pursuant to Family Code §§ 2023, 271.
- 5) On January 23, 2026, Petitioner filed an Income and Expense Declaration, which includes the following information:
 - a. Filing Status: Head of Household, 1 exemption
 - b. Other Party's Income: \$24,615.00/month
 - c. Average Monthly Income: \$11,022.00/month
 - d. Union Dues: \$55.00/month

- e. Required Retirement Payments: \$448.00/month
 - f. Medical, hospital, dental and other health insurance premiums: \$771.00/month
 - g. Cash and checking accounts: \$302,003.00
 - h. Total Expenses: \$21,459.00/month
 - i. Attorney Fees Paid: \$362,227.00/month
 - j. 78% timeshare with child
- 6) On February 4, 2026, Petitioner filed a Proof of Electronic Service of the RFO and supportive pleadings.
 - 7) On March 27, 2026, Petitioner filed a supplemental declaration.
 - 8) On April 8, 2026, Respondent filed a Responsive Declaration in opposition to Petitioner's RFO. Respondent agrees to paying \$1,500 in monthly child support, which he asserts is based on "actual income" as Respondent has been unemployed since August 2024.
 - 9) On April 8, 2026, Respondent filed a Memorandum of Points and Authorities.
 - 10) On April 8, 2026, Respondent filed Declaration of Attorney in Opposition to Request for Child Support and Attorney's Fees.
 - 11) On April 8, 2026, Respondent filed an Income and Expense Declaration, which includes the following information:
 - a. Filing Status: Married Filing Separately, 3 exemptions
 - b. Other Party's Income: \$10,833.00/month
 - c. Average Monthly Income: \$.00/month
 - d. Dividends/interest: \$2083.00/month
 - e. Income from Self-Employment: \$0.00
 - f. Cash and checking accounts: \$12,600.00
 - g. Mortgage Interest: \$5450.00/month
 - h. Property Taxes: \$1900.00
 - i. Total Expenses: \$15,165.85/month
 - j. Attorney Fees Paid: \$196,701.12
 - k. 20% timeshare of minor child

12) On April 14, 2026, Petitioner filed a Reply Declaration reiterating her request for guideline child support retroactive to July 5, 2024, and \$35,600 in attorney fees and costs.

13) April 14, 2026, Petitioner filed a Reply Memorandum of Points and Authorities.

14) On April 14, 2026, Petitioner filed Declaration of Counsel in Support of Petitioner's Request for Attorney's Fees Pursuant to Family Code §§ 2023, 271.

15) April 14, 2026, Petitioner filed a Statement of Support Calculations.

16) April 14, 2026, Petitioner filed Objections and Request to Strike and Exclude Portions of Respondent's Declaration and Declaration and Declaration of Respondent's Counsel filed April 8, 2026.

B. Findings and Order

1) As a preliminary matter, the Court rules on Petitioner's Objections to Sachin's Declaration as follows:

- a. No. 1: OVERRULED
- b. No. 2: SUSTAINED
- c. No. 3: SUSTAINED
- d. No. 4: SUSTAINED
- e. No. 5: OVERRULED
- f. No. 6: SUSTAINED
- g. No. 7: SUSTAINED
- h. No. 8: SUSTAINED
- i. No. 9: SUSTAINED
- j. No. 10: SUSTAINED
- k. No. 11: SUSTAINED
- l. No. 12: OVERRULED
- m. No. 13: OVERRULED
- n. No. 14: OVERRULED
- o. No. 15: OVERRULED
- p. No. 16: OVERRULED
- q. No. 17: OVERRULED

1 r. No. 18: OVERRULED

2 s. No. 19: OVERRULED

3 t. No. 20: OVERRULED

4 u. No. 21: OVERRULED

5 v. No. 22: OVERRULED

6 2) Additionally, Court rules on Petitioner's Objections to Michael's Declaration as follows:

7 a. No. 1: SUSTAINED

8 b. No. 2: OVERRULED

9 c. No. 3: SUSTAINED

10 d. No. 4: OVERRULED

11 e. No. 5: SUSTAINED

12 f. No. 6: SUSTAINED

13 g. No. 7: SUSTAINED

14 h. No. 8: SUSTAINED

15 i. No. 9: OVERRULED

16 j. No. 10: OVERRULED

17 k. No. 11: SUSTAINED

18 l. No. 12: SUSTAINED

19 m. No. 13: OVERRULED

20 3) Petitioner's Request for Family Code section 2030 attorney's fees is DENIED. The Court does
21 not find there is a disparity in income and access to funds given the asset division contained in the
22 Memorandum of Understanding (MOU) signed by both parties and filed with the Court on
23 January 20, 2026. Notably, the MOU provides for Petitioner to receive \$1,650,000 as an
24 equalizing payment. It is uncontroverted that Respondent has a multi-million-dollar estate.
25 However, per the parties' respective Income and Expense Declarations, Respondent has \$12,500
26 in "cash and checking accounts," while Petitioner has \$302,003 in "cash and checking."
27 Respondent has been unemployed since 2024. Accordingly, based upon the facts and equities of
28 the case, the Court finds good cause to DENY Petitioner's Request for Family Code section 2030
29 attorney's fees and costs. Each party shall bear their own attorney's fees and costs.

- 1 4) Petitioner's request for family Code section 271 sanctions is also DENIED. The Court does not
2 find that Petitioner met her burden to show that the Respondent engaged in uncooperative
3 conduct.
- 4 5) Petitioner's request for guideline child support is GRANTED; however, the Court declines to
5 issue a child support order retroactive to July 5, 2024, as it is undisputed that Respondent
6 voluntarily contributed to costs and expenses Petitioner incurred for the minor child.
- 7 6) Based on the information submitted in parties' respective Income and Expense Declarations (as
8 set forth in sections 5 and 11 above), the Court finds that guideline child support is calculated to
9 be \$13.00 per monthly payable by Petitioner to Respondent (since Respondent is not currently
10 earning a monthly income). However, in Respondent's Responsive Declaration filed April 8,
11 2026, Respondent agrees to pay Petitioner \$1,500 per month in child support.
- 12 7) Given that Respondent has agreed to pay \$1,500 per month in child support and considering the
13 significant value of Respondent's estate, Court finds that there are special circumstances under
14 Family Code section 4057(b)(5)(B).
- 15 8) The Court further finds it is appropriate and in the best interest of the parties' minor child to
16 deviate from guideline child support and enter an off-guideline child support order of \$1,500 per
17 month payable by Respondent to Petitioner on the 1st of every month effective 1/23/26.
- 18 9) Respondent owes Petitioner \$6,435.48 in child support arrears for the period of 1/23/26 - 5/30/26
19 (\$435.48 for January + \$6,000 (\$1,500 x 4) for February - May). Respondent shall pay this
20 balance in full by 5/30/26.
- 21 10) Moving forward, the parties shall share equally the following add-ons going forward: childcare
22 costs related to employment or to reasonably necessary education or training for employment
23 skills, reasonable uninsured healthcare costs for the child, and the reasonable costs associated
24 with mutually agreed upon extracurricular activities. Neither party shall unreasonably withhold
25 consent for a child to participate in an activity. The procedure to make or pay a reimbursement
26 claim for these child support add-ons shall be as set forth in Judicial Council Form FL-192.
- 27 11) Counsel for Petitioner shall prepare the Findings and Order After Hearing, which shall include as
28 an attachment the forms FL-342 and FL-192.

1 12) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	1	2026			
% time with NCP	22.00 %	0.00 %		Comb. net spendable	9300	9300
Filing status	MFS->	HH/MLA	GUIDELINE	Percent change	0%	0%
# exemptions	1	2 *	Nets(adjusted)	Father		
Wages+salary	0	11022	Father	2005		
Self-employed income	0	0	Mother	7296	13	13
Other taxable income	2083	0	Total	9300	2017	2017
TANF+CS received	0	0	Support		0	0
Other nontaxable income	0	0	Addons	0	% of combined spendable	22%
New spouse income	0	0	Guideln CS	13	% of saving over guideline	0%
401(k) employee contrib	0	0	S.Clara SS	0	Total taxes	78
Adjustments to income	0	0	Total	13	Dep. exemption value	0
SS paid prev marriage	0	0			# withholding allowances	0w
CS paid prev marriage	0	0	Settings changed		Net wage paycheck	0
Health insurance	0	771		Mother		
Other medical expense	0	0			Payment cost/benefit	-13
Property tax expense	1900	0			Net spendable income	7283
Ded interest expense	5450	0	Proposed		Change from guideline	0
Charitable contributions	0	0	Tactic 9		% of combined spendable	78%
Misc tax deductions	0	0	CS	13	% of saving over guideline	0%
Qual bus income ded	0	0	SS	0	Total taxes	2452
Required union dues	0	55	Total	13	Dep. exemption value	0
Mandatory retirement	0	448			# withholding allowances	0
Hardship deduction	0 *	0 *	Saving	0	Net wage paycheck	7951
Other GDL deductions	0	0	Releases	0		
Child care expenses	0	0				

Mother pays Guideline CS, Proposed C

FC 4055 checking: ON

Per Child Information

	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	22 - 78	0	0	0 Father	13 Mother	13 Mother
	22 - 78	0	0	0 Father	13 Mother	13 Mother